

9. 9:00 AM CASE NUMBER: C25-00585

CASE NAME: VICTOR MARTINEZ VS. ANTIOCH DUNES HEALTHCARE, LLC

*HEARING ON MOTION IN RE: MOTION FOR SANCTIONS PER CCP 128.8 - PROVISIONAL

FILED BY:

TENTATIVE RULING:

CCP 128.7(c)(1) provides: [N]otice of motion shall be served as provided in [s]ection 1010, but shall not be filed with or presented to the court **unless**, within 21 days after service of the motion, or any other period as the court may prescribe, the **challenged paper, claim, defense contention, allegation, or denial is not properly withdrawn or appropriately corrected**. (Emphasis added.) Section 128.7 is a safe harbor statute in that a party can avoid its sanctionable actions by withdrawing the motion within the time period prescribed. It allows correction of a [] defect in a [motion] after the defect is called to the attention of the [moving party]. (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154.) A party is not entitled to sanctions pursuant to CCP 128.7 unless the target of the motion had a full 21 days to withdraw the allegedly offensive motion. (*Broadcast Music, Inc. v. Structured Asset Sales, LLC* (2022) 75 Cal.App.5th 596.) The Legislature included this safe harbor provision so that the statute would be remedial rather than punitive. (*Li v. Majestic Industry Hills, LLC* (2009) 177 Cal.App.4th 585, 591.)

Here, it does not appear that Plaintiff is utilizing CCP 128.7 as intended. The purpose of 128.7 is to allow offending motions to be withdrawn or risk sanctions by the court. CCP 128.7 does not operate retrospectively. Of course, even had Plaintiff properly notice Defendant, Defendant could have still escaped sanctions by withdrawing the motion. Indeed, Defendant did withdraw their motion after reading Plaintiff's opposition and realizing their mistake.

Plaintiff's request for sanctions pursuant to CCP 128.7 is **denied**.

10. 9:00 AM CASE NUMBER: C25-01177

CASE NAME: NEDA VALIASHRAFI VS. MANSOUR AZIZI

HEARING ON DEMURRER TO: CROSS COMPLAINT

FILED BY: VALIASHRAFI, NEDA

TENTATIVE RULING:

The demurrer to the cross complaint is continued to February 27, 2026, at 9 am. Plaintiff's counsel to notice Defense counsel. Any opposition is due by February 13, 2026. Any reply is due by February 20, 2026.

11. 9:00 AM CASE NUMBER: MSC22-00069

CASE NAME: ABBUSHI VS AHLUWALIA

HEARING ON SUMMARY MOTION

FILED BY:

TENTATIVE RULING:

Introduction

Before the Court is Defendants WALIA ENTERPRISES, LLC (also doing business as SPOONTONIC LOUNGE), AJIT AHLUWALIA, and JASMEET (erroneously identified as "JAZMEET") AHLUWALIA

(collectively "DEFENDANTS"), Motion for Summary Judgment ("MSJ") as to the now pending and operative complaints in consolidated case No. MSC-22-00069 brought by Plaintiffs JESSICA O. ABBUSHI, for herself and as the personal representative of the estate of Lufti Abbushi, and as Guardian ad Litem for ALI LUFTI ABBUSHI and KHADER LUFTI ABBUSHI, and in consolidated Case No. C-23-01709 brought by Plaintiff, SAMMY ABBUSHI.

In the alternative, if for any reason summary judgment is not granted, the MOVING DEFENDANTS will and hereby do move the Court for an order adjudicating each of the following issues:

ISSUE ONE: that the MOVING DEFENDANTS are entitled to judgment on the first cause of action for General Negligence in each of the aforesaid consolidated cases on grounds that said causes of action have no merit;

ISSUE TWO: that the MOVING DEFENDANTS are entitled to judgment on the second cause of action for Intentional Tort in each of the aforesaid consolidated cases on grounds that said causes of action have no merit;

ISSUE THREE: that the MOVING DEFENDANTS are entitled to judgment on the third cause of action for Premises Liability in each of the aforesaid consolidated cases on grounds that said causes of action have no merit; and

ISSUE FOUR: that MOVING DEFENDANTS are entitled to judgment as to the Exemplary Damages attachments in each of the consolidated cases on grounds that the allegations therein have no merit.

For the following reasons, **Defendants' motion for summary judgment is denied, summary adjudication of the intentional tort cause of action is granted as to all Plaintiffs.**

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the MSJ. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in

support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable, supra*, 159 Cal.App.4th at 1483.)

Factual Background

The Lawsuit

The consolidated cases are brought by the widow and children of Lufti Abbushi (aka "Louie"), and his brother Sammy Abbushi. (UMF 1-2.) In July 2021, the Abbushi brothers and several friends had gone to the Spooontonic Lounge ("Spooontonic"), a bar located in Walnut Creek. Spooontonic is the fictitious business name by which the LLC conducts business at the bar. (UMF 5-6.) The LLC, in turn, is owned by defendant Ajit Ahluwalia. (UMF 8.) The bar's on-site manager, Jasmeet ("Jazz") Ahluwalia, is Ajit Ahluwalia's adult son; Jazz is an employee of the LLC and owns no beneficial or other interest in the business. (UMF 11-13.) The bar is on property leased by the LLC from the Helen Sun Trust. (UMF 7.)

After being escorted out of the bar for harassing women patrons, there was a shooting 150- 200 feet away from the bar on property that was neither owned, leased, nor controlled by defendants. As a result of the shooting, Lufti Abbushi died, and his brother Sammy Abbushi was injured.

In the consolidated lawsuits, Plaintiffs' form complaints seek general, special and punitive damages predicated on three causes of action: General Negligence (first cause of action); Intentional Tort (second cause of action); and Premises Liability (third cause of action).

Spooontonic Lounge

Defendant Walia Enterprises, LLC ("Walia Enterprises") is and at was registered with the California Secretary of State as a limited liability company. (UMF 3.) Defendant Walia Enterprises operates a bar called Spooontonic Lounge located at 2580 N. Main St., Unit A, Walnut Creek, California (the "PREMISES"). (UMF 6.) Spooontonic Lounge is not an entity separate and apart from Walia Enterprises but is the fictitious business name under which Walia Enterprises operates Spooontonic Lounge. (UMF 5.) Defendant Walia Enterprises does not own the Premises but leases them from the Helen Sun Trust. (UMF 7.) Walia Enterprises has operated Spooontonic Lounge since May 2014. (UMF 10.)

Walnut Creek Planning Commission's Conditional Use Permit ("CUP") Obligations

The landlord provided about 10 or 12 parking spaces across the driveway and to the east of Spooontonic's patio area. There, patrons could park in tandem, thus accommodating 20 to 24 cars. If those spaces were full, people usually parked behind Napa Auto, and Buck Stove; some people also parked on SOS Drive.

Defendants contend that Spooontonic did not control those other parking areas, while Plaintiff contend that Defendants had a contractual duty to keep adjacent parking lots clean and in good order during bar hours.

Plaintiff argues that the Walnut Creek Conditional Use Permit dawns Defendants with an obligation to keep up neighboring parking lots. When Ajit entered the lease to operate Spooontonic, the property

owners provided him with a copy of the 2009 Walnut Creek CUP for the property. He read the document at the time and was informed the 2009 permit came with specific conditions. (ADMF 12.) Jazz understood that pursuant to the City's permit, Spoon tonic had an obligation to be courteous, considerate of its' neighbors, and to keep the area clean—in other words, Spoon tonic had to "take care of [its] neighbors". Thus, as part of security's responsibilities, Jazz required bouncers to clean up and pick up trash including in the Spoon tonic parking lot and adjacent businesses (the neighbors) at the end of the shift. The designated areas include the parking lot near the Napa Auto Parts, which is a neighboring business and adjacent to Spoon tonic. Spoon tonic began this responsibility before Covid-19 and even up until the time of the subject incident. (ADMF 13.) The Napa Auto Parts' parking lot and SOS Drive were also used by patrons to park when the bar was crowded. (ADMF 14.)

Spoon tonic Management and Staffing

Ajit Ahluwalia, the LLC's owner, did not work at Spoon tonic and is not involved in the bar's day-to-day management. (UMF 11.) His son Jazz, however, was an employee of Walia Enterprises and worked as general manager of Spoon tonic. In addition, Walia Enterprises employed several additional staff at Spoon tonic-- bartenders, waitresses, an occasional DJ, and security ("bouncers'). (UMF 11.)

Jazz's Prior Experience

Jazz Ahluwalia had prior experience as the general manager of another bar in Livermore, and he served as Spoon tonic's general manager from the time Walia Enterprises acquired the bar in 2014 until he ceased working there in August 2024.

Plaintiff contends Jazz's experience of the bar in Livermore did not include general manager experience. Prior to Spoon tonic Lounge, both Ajit and Jazz's only experience in the bar industry was at Livermore Saloon, a bar where Ajit was a partner. Jazz worked at Livermore Saloon for approximately 18 months as a bartender and oversaw inventory. Besides supervising bartenders at Livermore, Jazz was not in charge of supervising any other personnel and was not in charge of hiring any personnel. (ADMF 1.)

All day-to-day operations and management of Spoon tonic Lounge were handled by Jazz Ahluwalia, not Ajit Ahluwalia. As general manager, Jazz Ahluwalia's duties consisted of bartending, inventory and ordering of supplies, organizing special events (comedy shows, karaoke, and the like), monitoring what was going on during operating hours, hiring, training and firing of staff, handling payroll and generally overseeing the efficient operation of the bar. As on-site manager, Jazz personally interviewed all staff, including bouncers, to work security. After Jazz took over, and as business increased, he hired additional security to work, especially on weekends.

Prior History of Violence and Crime

Defendants posit that prior to the evening of the incident, there had not been any violent incidents which necessitated calling the police; there had never been any issue with violence, including the use of a gun, knife, or other form of weapon at Spoon tonic. The only police interventions at the bar were for minor issues such as over-intoxicated persons, rowdy behavior, drugs, and the like. (Decl. Jasmeet. Abbushi, ¶¶ 32, 33, 36; Alvarez Depo. 53:23 to 54:12.)

Defendants take the position that there was nothing that had happened previously at Spoon tonic to

give Jazz any reason to anticipate that (1) any of the employees might use a weapon, or (2) that there would be a shooting inside the bar or any area controlled by him and his employees. (Decl. Jasmeet Ahluwalia, op. cit.)

Plaintiffs combat this position with the Deposition Transcript of the Walnut Creek Police Department (WCPD) person most knowledgeable (PMK) Captain Ryan Hibbs who had personally responded to calls for service at the premises on approximately 15-20 occasions while he was a patrol officer, sergeant, and lieutenant.

Prior to the July 18, 2021, shooting, WCPD responded to calls for services at the premises for fights “pretty continuously” and calls for service on disturbances averaged 2-3 times per weekend. The rate the WCPD responded to disturbances at the premises was on the higher side in relation to other nightlife in the area. (ADMF 5.)

Capt. Hibbs further testified that he reviewed 13 incident reports involving assaults for the premises which occurred between December 19, 2016, to July 18, 2021 (prior to the shooting). Based on his experience with the WCPD, assaults with great bodily injury or assaults with deadly weapons are considered violent crimes. (ADMF 6.) Of the reports reviewed, there were at least three incidents of assaults with deadly weapons at the premises or the parking lot—involving a knife, a pipe, and a bottle. There also were incidents involving large fights on the premises or parking lot. (ADMF 7.) From the reports reviewed, Capt. Hibbs recalled several instances where either the bar owner, manager, or staff were contacted by WCPD. (ADMF 8.) The WCPD Custodian of Record also testified that from July 22, 2003, to July 18, 2021 (prior to the shooting), there was approximately 198 calls for service made for the premises. (ADMF 9.)

Hiring, Training, and Supervision of Security Personnel

After Walia Enterprises took over, SpoonTonic had a single security worker and two bartenders. After business started picking up, there were frequently as many as 40-50 people on the patio standing in line waiting to get into the bar. By the time of the incident, Jazz Ahluwalia had hired more people, more security, and bartenders to accommodate the increased business.

Jazz testified as the Walia PMK on hiring, training, and supervising security. Jazz oversaw security but admitted he has no background in security and never received training in security services. (ADMF 15.) The only training Jazz received on supervising personnel in general was through his life experiences. (ADMF 16.) Jazz further testified that SpoonTonic needed security because it was a bar and every bar needs security. (ADMF 17.) In hiring security, Jazz looks for prior experience, size, and willingness to learn. Jazz does not require resumes and does not conduct background checks. (ADMF 18.) Interviewees who have gang affiliations, anger management issues, or are unable to perform conflict de-escalation techniques are considered unsuitable for a security position. (ADMF 19.)

SpoonTonic security (“bouncers”) are furnished with UV flashlights to check IDs, some form of plaque they wore around their necks showing they were Security and wore black shirts. (Raul Alvarez Depo. 32:22-24.)

Defendants contend they conducted pat downs of anyone wanting to enter the bar and searched women’s purses. If there had been a weapon, those would have been discovered during the pat-

down. Bouncers were not furnished with weapons such as guns or police batons of any kind whatsoever and were not authorized to have or use weapons as part of their duties. (Alvarez Depo. 34:5-15.) Only after the incident were bouncers furnished with security wands to check for weapons.

Plaintiffs contend that Defendants failed to conduct pat down searches. Spoon tonic instructed its security on two conflict de-escalation techniques that were expected when a conflict was brewing between patrons: to separate the groups and to call the WCPD. This training was also provided to Alvarez. (ADMF 23.) Despite WCPD instructing Jazz and Ajit to require pat-downs of patrons to check for weapons, Alvarez was instructed to conduct a visual search only and not to perform a pat-down. (ADMF 24.) Alvarez also testified that he had not escorted a party out before. (UMF 31.)

Prior to hiring each of the Spoon tonic employees, Jazz Ahluwalia personally interviewed them to inquire about any prior experience they had, and whether they had any prior issues that would make them unsuited for employment in security, including gang membership or affiliation; and to Jazz' knowledge, none had any such issues. (Jasmeet Ahluwalia Decl. ¶¶ 30-31.)

Plaintiffs' complaints in this lawsuit single out a bouncer named Raul Alvarez, falsely alleging that he was ordered by Jazz to "take action" against plaintiffs. (Sammy Abbushi complaint, Second Cause of Action.) Prior to the night of the incident, Defendants never experienced any problems with Alvarez. To Jazz Ahluwalia's knowledge, none of the employees at Spoon tonic were gang members, nor was Jazz aware of any issues they may have had with law enforcement. Raul Alvarez worked only Friday evenings and Saturday evenings.

The Incident

The incident giving rise to these lawsuits occurred during the late evening of Saturday July 17, 2021, to the early morning hours of Sunday, July 18, 2021.

On the night of the incident, Spoon tonic's on-duty staff consisted of Jazz Ahluwalia, two bartenders, and several security workers ("bouncers"). Business was relatively slow that night, and there were only about 10 people waiting outside in line to get in. Security personnel were taking turns, rotating with two men inside the bar and two outside screening bar entrants. (Decl. Jasmeet Ahluwalia ¶¶ 21-23.)

Sammy wanted to go to Spoon tonic, and he, his older brother Lufti, Lufti's friends Javon Franklin, Christopher Bradley and Jamal Miller met up and drove there from Richmond. on the evening of Saturday, July 18, 2021. (Sammy Abbushi Depo. 39:4 to 39:24.) Lufti Abbushi drove his wife's silver Honda Civic, with the other four being passengers in that car. (Sammy Abbushi Depo. 40:3-11; 41:8-9.)

The men arrived at Spoon tonic somewhere around 11 p.m. (Sammy Abbushi Depo. 43:19- 21] Prior to entering Spoon tonic the men had to wait in line for 45 minutes to an hour. [Sammy Abbushi Depo. 53:20-21] They were required to present their identification, and a bouncer either used a wand or subjected them to a pat down for weapons. (Sammy Depo. 52:20 – 53:1; Alvarez Depo. 25:11-23.)

Shortly after 1 a.m., Alvarez, who was still working security at the front entrance, heard screams coming from a few young women patrons. He approached them and inquired what was happening. They told him that they were on their way out of the women's restroom and that a group of men (the Abbushi party) were at a table adjacent to the women's restroom, that the men got up off their table

and told them, "Let's go back inside the bathroom so you can perform sexual favors for us." After the women declined the advances, the men tried to push onto them." (Alvarez Depo. at pp. 48-49.)

After pointing out who the men were, Alvarez went over to a table adjacent to the women's bathroom where the Abbushis, Franklin, Miller and Bradley were. He told the men that they needed to leave the bar for harassing the women. The men became hostile. Alvarez testified he asked the men twice to leave. Jazz told Alvarez to tell the men again that some females had complained about their behavior and that the men should leave.

Alvarez then escorted the Abbushi group outside, as Jazz watched. The men seemed to be leaving peaceably, and Jazz went back inside, and a few minutes later he began to turn the lights inside the bar on as it was now approaching closing time. Alvarez thought the problem was over as the men walked toward their car. (Alvarez Depo. 79:21 to 80:4) Alvarez went back to his post outside.

About five minutes after escorting the Abbushi group outside the bar, one of the men from the Abbushi group came back to where Alvarez was and pointed a gun at him. Alvarez slapped the gun away and ducked under a car as he heard gunshots. (Alvarez Depo. 80:8-24) Alvarez then heard multiple gunshots. (Alvarez Depo. 65:12-20 to 66:24) Alvarez fractured his right thumb as he hit the ground, requiring medical attention the following day. (Alvarez Depo. 68:4-20.)

Videos of the shooting were captured from a nearby business. Sgt. Coffin reviewed the videos and prepared a detailed summary of their contents. The detailed summary is contained in a Power Point he prepared. (Sgt. Coffin Depo. at 21 ff & Exhs. 6A & 6B [video]s, and Exh. 7 [PowerPoint summary of Exhs. 6A & 6B]).

However, Alvarez (the bouncer) had already returned to the bar when he heard several shots coming from the general area of the parking lot behind the Napa Auto Parts. Alvarez got down on the ground to protect himself and upon getting back up saw a person (later learned by the police to be Giovanni Gutierrez) lying on the ground in the parking lot near the bar. Alvarez ran over to Gutierrez and saw that he had been shot in the torso and in the arm. Alvarez then gave Gutierrez medical aid until he was relieved by the Walnut Creek Police.

As the Abbushi group was escorted out of the bar and outside, Alvarez began yelling and threatening the Abbushi group, that they better get out of the bar before they get "effed" up. A mob of approximately 10 people formed behind Alvarez as he continued following the Abbushi group, threatening them. Sammy Abbushi then witnessed the mob jumping and physically attacking a member of the Abbushi group, Jamal Miller, and saw Alvarez in the middle of the mob that was attacking Miller. (ADMF 35.)

People inside the bar had started to leave when, suddenly, customers ran back inside after yelling "gunshots." Jazz closed the bar's door, called the police and they responded quickly.

Aftermath of Shooting

Lufti Abushi died due to the firearm exchange. Sammy Abbushi sustained gunshot wounds to his face which required extensive dental work. (ADMF 37.)

Jose Cassilas-Flores was charged with the murder of Lufti Abbushi, but charges against him were

dropped by the District Attorney who informed Sgt. Coffin he had concluded self-defense was a potential defense. (Sg. Coffin Depo. 75:19 to 76:90.)

While the police believe that Casillas-Flores may be affiliated with a street gang called the Nortenos, there is no evidence for them to believe that any of the Spoonstonic staff were members of any gang. (Sgt. Coffin Depo. 50:5-8.)

Analysis

Defendants Owed a Duty to Plaintiffs to Protect Them from Third Parties

Duty

Defendants argue that Plaintiffs fail to establish duty, scope of duty, and causation by failing to identify how security was inadequate or what additional security measures they believe should have been provided to prevent the attack by Jose Casillas-Flores. (Motion at p. 17: 10-12.) Defendants ultimately claim Plaintiffs simply cannot show that anything moving defendants did, or failed to do, caused the shooting. (Motion at p.17: 15-16.)

Plaintiffs argue that California courts have found that a special relationship exists in cases involving bars and their patrons. (*Delgado v. Trax* (2005) 36 Cal.4th 224, 235.) It is a well-established rule that “commercial proprietors (because they generally stand in a special relationship with their tenants, patrons, or invitees) are required to ‘maintain land in their possession and control in a reasonably safe condition’ and that this general duty includes taking ‘reasonable steps to secure common areas against foreseeable criminal acts of third parties that are likely to occur in the absence of such precautionary measures.’” (Id. at 237.) A proprietor has a duty “to take affirmative action to control the wrongful acts of third persons which threaten invitees.” (*Taylor v. Centennial Bowl, Inc.* (1996) 65 Cal.2d. 114, 121.)

Scope of Duty

The scope of the duty “is determined in part by balancing the foreseeability of the harm against the burden of the duty to be imposed. “[I]n cases where the burden of preventing future harm is great, a high degree of foreseeability may be required. On the other hand, in cases where there are strong policy reasons for preventing the harm, or the harm can be prevented by simple means, a lesser degree of foreseeability may be required.” ...[D]uty in such circumstances is determined by a balancing of ‘foreseeability’ of the criminal acts against the ‘burdensomeness, vagueness, and efficacy’ of the proposed security measures.” (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal. 4th 666, 678–679 (internal citations omitted).)

Heightened Foreseeability

“Heightened foreseeability is satisfied by a showing of prior similar criminal incidents (or other indications of a reasonably foreseeable risk of violent criminal assaults in that location) and does not require a showing of prior nearly identical criminal incidents.” *Delgado*, supra, 36 Cal.4th at 245. Thus, the two elements to be considered are evidence of 1) prior similar criminal incidents or 2) other indications of a reasonably foreseeable risk of violent criminal assaults in that location. Enough evidence of either of the two prongs, alone, will satisfy the standard.

Prior Similar Criminal Incidents

In *Tan*, an individual was shot during an attempted carjacking. The trial court found that heightened foreseeability was not satisfied as the three prior violent incidents were not similar enough, but the

Appellate court disagreed and stated that the test is prior similar incidents, not prior identical incidents. The Court explained that the trial court got it wrong by requiring an incident that involved guns, attempted shooting, murder, etc., and held that the plaintiff “...presented substantial evidence of prior, sudden, vicious assaults by a stranger at Pheasant Ridge” sufficient to meet the similar incident standard. (*Tan v. Arnel Management Co.* (2009) 170 Cal.App.4th 1087, 1100.)

Here, Captain Hibbs testified that he had personally responded to calls for service at the premises on numerous occasions prior to the shooting incident, that the WCPD responded to calls for services for fights “pretty continuously”, and the calls for service on disturbances averaged two to three times per weekend. The rate the WCPD responded to disturbances at the premises was on the higher side in relation to other nightlife in the area. (ADMF 5.) There were at least three incidents of assaults with deadly weapons at the premises or the parking lot from December 19, 2016, to July 18, 2021, prior to the shooting incident – involving a knife, pipe, and bottle. There were also incidents involving large fights on the premises or parking lot. (ADMF 6, 7.) There were several instances where either the bar owner, manager, or staff were contacted by WCPD. (ADMF 8.) WCPD Custodian of Record testified that from July 22, 2003, to July 18, 2021, there were approximately 198 calls for service made for the premises. (ADMF 9.) Based on this information, heightened foreseeability is satisfied.

Other Indications of Reasonably Foreseeable Risk of Violence

Less than 2.5 hours prior to the shooting, at least two incidents of violent or unlawful conduct occurred on the premises involving Walia security, Alvarez. Both were captured on video and showed Alvarez’s hostile and violent behavior, shouting gang affiliations and charging violently and relentlessly at patrons. Defendant Jazzmeet Ahluwalia can be seen witnessing Alvarez’s conduct in the second video and later testified that Alvarez was ultimately terminated due to his action’s unbecoming of a security guard during this incident. (ADMF 27, 28, 30, 31.)

Thus, there is substantial evidence of violent assaults on or near the premises in the approximately 4.5 years, and the 2.5 hours prior to the shooting incident. This conduct was more than a mere possibility and headed into reasonable probability given history of violent criminal acts, continuous police responses, and violence and aggression Alvarez exhibited himself mere hours before the shooting incident such that the risk of harm to patrons, including Plaintiffs, could reasonably be foreseen by an ordinary person. Based on this information, heightened foreseeability is satisfied.

Plaintiffs assert Defendants should have taken the following specific measures, at minimum, to prevent the foreseeable harm: First, Defendants had a duty to hire, supervise, and retain security personnel that are fit for the job. Second, Defendants had a duty to remove from the premises an unfit security guard, Alvarez, a known violent aggressor. Third, Defendants had a duty to ensure that its unfit security guard, Alvarez, stayed inside the premises and have more experienced security guards escort the Abbushi group out. Fourth, Defendants had a duty to ensure that their security guards did not act unlawfully, creating a chaotic environment and threatening violence. Fifth, Defendants had a duty to have its security guards maintain separation between the Abbushi group and the Casillas-Flores group. Sixth, Defendants had a duty to call WCPD’s 911 line for assistance as instructed by the WCPD. The above measures would not be financially and socially burdensome for the Walia Defendants to implement for several reasons: the Walia Defendants already had four security bouncers employed and working that night. Jazz, the bar manager, was also present that night. The bouncers could have utilized separation and de-escalation techniques. The bouncers also rotated in their positions, so the more experienced bouncers could have escorted the parties out instead of the inexperienced, aggressive Alvarez.

Liability for Off Premises Injuries is an Issue of Disputed Material Facts

Defendants rely heavily on *Glynn* for the proposition that, “In the absence of ongoing or imminent criminal conduct, we cannot find the defendants owed a duty to [] to protect [] from the assailants during the final altercation. Once [he] and the assailants left defendants’ bar peaceably and in separate directions, the bar’s duty ended.” (Motion at p. 22: 2-5; citing *Glynn v. Orange Circle Lounge* (2023) 95 Cal.App.5th 1289, 1296.)

The Court notices two major differences from the facts in *Glynn*. First, unlike in *Glynn*, here, Plaintiffs have established facts that Defendants had notice of a history of criminal conduct at the premises and two instances of violent conduct from a security guard that night as discussed above. Second, the time and distance in *Glynn* was significantly different than the current facts at bar. In *Glynn*, the appellate court affirmed the trial court’s finding that a bar did not owe the decedent a duty for a fight that happened an hour after and a block away from an earlier bar fight where the security broke up the fight and sent the parties on their way peaceably. (*Glynn v. Orange Circle Lounge Inc.* (2023) 95 Cal.App.5th 1289, 1292.) Here, there was no passage of time or great distance traveled like in *Glynn*. Sargent Coffin testified that there was surveillance footage of an interaction with the Abbushi group and Castillas-Flores inside SpoonTonic before the Abbushi group is escorted out. (ADMF 33; COE, Exhibit M, p. 42: 1-8.) Plaintiff Sammy Abbushi testified that after he left the bar with his brother and friends, they walked straight to the car but were followed outside by “giant mob” of people. (Motion at p. 11: 23-24.) As the Abbushi group was escorted out of the bar and outside, Security Guard Alvarez began yelling, cussing, and threatening the Abbushi group, that they better get out of the bar before they get “effed” up. A mob of approximately 10 people formed behind Alvarez as he followed the Abbushi group, threatening them. Sammy Abbushi then witnessed the mob jumping and physically attacking a member of the Abbushi group, Jamal Miller, and saw Security Guard Alvarez in the middle of the mob that was attacking Miller. (ADMF 35.) Defendant Casillas-Flores was then seen on surveillance camera with a dark object on his waistband and running back towards SpoonTonic Lounge. Almost immediately thereafter, the shooting incident occurred where shots were allegedly fired by a member of the Abbushi group, Javon Franklin, and Defendant Casillas-Flores. (ADMF 36.) The Abbushi car, which was the target of the shooting, ended up in the shared parking lot of the bar and the neighboring auto parts store. (ADMF 36.)

Here, Defendants failed to bear their initial burden of showing they are entitled to summary adjudication of the cause of action for premises liability.

There is No Dispute of Material Fact for the Intentional Tort Cause of Action

Plaintiffs’ main allegations for the intentional tort cause of action mainly are that Defendant Jazzmeet Ahluwalia directed security guard Raul Alvarez to threaten and attack Plaintiffs and intentionally incited Casillas-Flores and his associates to attack Plaintiffs. It seems like Plaintiffs leave it to the Court and Defendants as to which intentional tort they wish to prosecute against Defendants. Based on the Plaintiffs’ ADMF 35, the Court notices that although some elements of assault may be met, the Court does not find any facts that go the elements of causation or damages for assault by security guard Raul Alvarez to any of the Plaintiffs.

Thus, summary adjudication is granted as to the cause of action of intentional tort as to all Plaintiffs.

There are Disputed Issues of Material Fact for Exemplary Damages

Civil Code § 3294(a) requires clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. Malice requires intent “to cause injury to the plaintiff or despicable

conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Civil Code § 3294(c)(1).

Defendant Jazzmeet Ahluwalia’s actions as supervisory personnel suggest despicable conduct which was carried out with conscious disregard for the rights or safety of others. Defendant Jazzmeet Ahluwalia knowingly allowed Alvarez, a known aggressor, to escort the Abbushi group out of the Spooontonic Lounge. Doing so was in conscious disregard of human life given Alvarez’s uncontrolled, violent behavior that Defendant Jazzmeet Ahluwalia personally witnessed mere hours prior to the shooting incident. Such conduct warrants punitive damages.

Conclusion

As analyzed above, **Defendants’ motion for summary judgment is denied, summary adjudication of the intentional tort cause of action is granted as to all Plaintiffs.**

Evidentiary Objections

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).)

Defendant’s Evidentiary Objections

OBJ 3: Plaintiffs’ COE Exhibit “F”. **Overruled.**

OBJ 4: Plaintiffs’ COE Exhibit “G”. **Overruled.**

OBJ 5: Plaintiffs’ COE Exhibit “H”. **Overruled.**

OBJ 6: Plaintiffs’ COE Exhibit “I”. **Overruled.**

OBJ 7: Plaintiffs’ COE Exhibit “J”. **Overruled.**

OBJ 8: Plaintiffs’ COE Exhibit “L”. **Overruled.**

OBJ 11: Deposition testimony of Sgt. Joe Coffin (Pltfs. Exh. “M,” p. 67:20 to 68:11). **Overruled.**

OBJ 12: Deposition testimony of Sgt. Joe Coffin (Pltfs. Exh. “M,” p. 81:6- 14). **Sustained.**

OBJ 13: Deposition testimony of Sgt. Joe Coffin (Pltf. Ex. “M,” p. 46:10-19). **Overruled.**

12. 9:00 AM CASE NUMBER: N23-0399
CASE NAME: CHHONG CHOW VS. WALEED SABRAH
***HEARING ON MOTION IN RE: CONSOLIDATE ACTIONS**
FILED BY: CHOW, CHHUONG
TENTATIVE RULING:

Before the Court is a motion to consolidate actions filed by plaintiffs Chhuong Chow and Sarah Poeng Chow. For the reasons set forth, the motion is **granted**. The actions are consolidated for all purposes pursuant to Code of Civil Procedure section 1048(a).

Background

Plaintiff Chhuong Chow initiated this case as an unlawful detainer action to recover possession of a